

UAE Labour Disputes — Evidence Checklists & Complaint Procedure Guide

For use as RAG corpus in AI legal-aid agent. Covers evidence requirements per issue type, harassment complaint path, workplace safety path, and complaint letter field requirements. Last research date: June 2026.

1. Evidence Checklists by Issue Type

The Intake Agent should use the classified issue_type to generate the appropriate evidence checklist. The table below maps each issue type to required vs. helpful supporting documents.

1.1 Unpaid Wages

Evidence Item	Priority	Notes
Employment contract (signed copy)	Required	Establishes agreed salary and payment schedule
Payslips for the relevant period	Required	Proof of what was owed; gap = non-payment
Bank statements for the relevant period	Required	Shows no WPS transfer received
WPS payment history (download from MOHRE app)	Required	Official record of WPS compliance — strongest evidence
Any written communication about missed payments	Highly Useful	WhatsApp, email, SMS from employer acknowledging delay
Labour card / work permit copy	Required	Confirms employment relationship and establishment number
Emirates ID copy	Required	Identity verification for MOHRE filing
Offer letter or salary amendment letters	Useful	If salary was verbally increased but not formally documented
Attendance records or timesheets	Useful	To establish hours worked during disputed period

1.2 Illegal / Arbitrary Termination

Evidence Item	Priority	Notes
Employment contract	Required	Establishes notice period and termination terms
Termination letter or notice from employer	Required (if written)	Establishes date and stated reason
Any written warnings or performance reviews	Useful	Absence of warnings supports 'no valid cause' argument
WhatsApp/email communication about termination	Highly Useful	Any verbal termination must be established through messages if no letter
Labour card / Emirates ID	Required	Identity and employment confirmation
Payslips (last 3-6 months)	Required	To calculate gratuity, notice pay, unpaid wages owed
End-of-service letter (if provided)	Required	Confirms termination date and any amounts paid
Evidence of complaint filed before termination	Critical if retaliatory	Shows termination occurred after a complaint — key for arbitrary dismissal
Witness details (colleagues)	Useful	Colleagues who witnessed the termination or circumstances

1.3 Contract Violation

Evidence Item	Priority	Notes
Original signed employment contract	Required	The baseline for what was promised
Offer letter and any subsequent amendments	Required	Documents any agreed changes
Documentation of the specific change complained about	Required	E.g., new roster schedule, changed job description in writing, reduced salary
Written objections sent to employer	Useful	Emails or messages objecting to the change — shows worker did not consent
MOHRE-registered contract copy	Required	The MOHRE-filed version is legally binding; any unregistered deviation is not

Payslips showing changed salary (if wage changed)	Required	Direct evidence of unilateral breach
---	----------	--------------------------------------

1.4 Workplace Abuse / Harassment

IMPORTANT AGENT BEHAVIOUR: for harassment/abuse cases, the Safety Agent should always run first. If physical threats or violence are present, the pipeline must SHORT-CIRCUIT to HIGH_RISK before reaching this checklist. This checklist is for CAUTION-level harassment (verbal, psychological, discriminatory) not physical violence.

Evidence Item	Priority	Notes
Written record of incidents (dates, times, witnesses)	Witnesses	Worker should keep a private log; export from notes app as PDF
Screenshots of harassing messages (WhatsApp, email, text)	Critical, if available	Preserve with timestamps visible; screenshot entire thread not just one message
Names and contact details of witnesses	Highly useful	Colleagues who witnessed incidents
Any prior complaints made internally to HR	Required if applicable	Shows employer was notified and failed to act
Medical or psychological treatment records	Useful	Establishes impact; relevant for compensation calculation
Employment contract	Required	Establishes the employment relationship
Record of any change in duties/demotion	Critical if applicable	Evidence of retaliation following internal complaint

1.5 Unsafe Working Conditions

Evidence Item	Priority	Notes
Photographs or video of the hazard	Critical	Time-stamped if possible; stored securely off-work devices
Written safety complaints previously made internally	Required if applicable	Shows employer was notified and failed to remedy
Medical records from work-related injury or illness	Required if injury occurred	Establishes link between condition and harm
Names of colleagues exposed to the same hazard	Highly useful	Corroborates that hazard is systematic not isolated
Any safety inspection reports (if available)	Useful	MOHRE or Ministry of Health inspection records
Employment contract and job description	Required	Establishes duty of care owed

2. Workplace Harassment and Abuse — Complaint Path

Harassment and workplace abuse complaints follow a different initial path than wage complaints. The primary channel depends on severity:

Step 1 — Internal Report (if safe to do so)

- Article 13 of FDL 33/2021 requires employers to have an internal complaints procedure. The worker should first report to the HR department or direct manager's superior in writing (email creates a paper trail).
- If the harasser IS the HR manager or a senior executive, or if the worker fears retaliation from internal reporting, skip directly to Step 2.
- Give the employer a reasonable opportunity to respond (typically 5-10 working days) and document whether they acted.

Step 2 — MOHRE Complaint (Harassment/Abuse Category)

- File at mohre.gov.ae under 'Labour Complaints' — select the category 'Workplace Harassment' or 'Verbal/Psychological Abuse' (category names may vary; describe the issue clearly in the free-text field).
- MOHRE will assign a mediator. Bring all evidence from Section 1.4 above.
- If physical violence occurred during working hours: this is simultaneously a MOHRE complaint and a police matter — both should be filed. MOHRE handles the labour aspect (compensation, termination); the police handle the criminal aspect.

- For gender-based harassment or discrimination: the worker may also contact the Dubai Foundation for Women and Children (800 111 in Dubai) or the Abu Dhabi Family Development Foundation (800-2333 in Abu Dhabi) for parallel support.

Step 3 — If MOHRE Mediation Fails

- If the claim value exceeds AED 50,000 or mediation fails: MOHRE issues an NOC and the case proceeds to the Labour Court.
- For pure harassment with no monetary claim: MOHRE can still issue a formal finding. The worker may also file a separate civil damages claim in the courts.
- Cases involving physical assault: also file a criminal complaint at the nearest police station — the criminal and civil/labour processes run in parallel.

3. Unsafe Working Conditions — Complaint Path

3.1 MOHRE Labour Inspection Department

MOHRE's Labour Inspection Department is the primary authority for workplace safety complaints in the UAE private sector:

- File a complaint via 600 590000 or mohre.gov.ae requesting a Labour Inspection visit.
- Describe the specific hazard (lack of PPE, unsafe scaffolding, inadequate ventilation, extreme heat without breaks, etc.).
- MOHRE inspectors have powers to enter premises, examine conditions, and issue compliance orders to employers.
- The worker's identity may be kept confidential in the inspection report — ask MOHRE explicitly about confidentiality when filing.

3.2 Heat Stress Specific Rules (Critical for Construction/Outdoor Workers)

- UAE law prohibits outdoor work between 12:30 PM and 3:00 PM from June 15 to September 15 each year (the 'midday ban').
- Employers must provide shaded rest areas, drinking water, and first aid for outdoor workers.
- Violations of the midday ban are reportable to MOHRE and result in immediate administrative fines.
- A worker suffering heat-related illness due to employer negligence in violating these rules has grounds for both a safety complaint and a compensation claim.

3.3 Work-Related Injury Claims

- If a worker suffers a work-related injury, the employer is legally obligated to cover all medical treatment costs regardless of fault.
- For permanent disability resulting from a work injury: the worker is entitled to compensation under the DEWS/GPSSA scheme or as calculated under Article 54 of FDL 33/2021.
- The worker should obtain a detailed medical report from the treating facility documenting the work-related cause.
- If the employer refuses to pay medical costs: this is a separate MOHRE complaint from any wage complaint and should be filed simultaneously.

4. Complaint Letter — Required Fields for MOHRE Filing

The Action Agent's complaint letter generator must collect and populate these fields. Fields marked Required must be present for MOHRE to accept the complaint. Fields marked Useful strengthen the case but are not blocking.

Field	Required?	Source / Notes
Worker full legal name (as in passport)	Required	Must match Emirates ID
Worker Emirates ID number	Required	13-digit number
Worker passport number and nationality	Required	For migrant workers
Worker mobile number	Required	MOHRE sends SMS updates
Worker email address	Required	For digital correspondence
Worker current work permit / labour card number	Required	14-digit MOHRE number
Employer / company registered name	Required	As on trade licence
Employer establishment number (MOHRE)	Required	13-digit number; on labour card or employment contract
Worker's basic wage (as per contract)	Required	AED value; from contract
Complaint primary category	Required	Select from MOHRE dropdown: unpaid salary, arbitrary dismissal, etc.
Period of violation (start date to present)	Required	e.g., 'February 2026 to present — 4 months unpaid'
Total claimed amount in AED	Required	Calculate: monthly wage x months unpaid + any other dues
Timeline narrative of events	Required	Chronological account with specific dates
List of supporting documents attached	Required	Match to evidence checklist
Previous internal complaints filed	If applicable	Date and recipient of any HR complaints
Witness names and contact details	Useful	If any colleagues can corroborate
Any prior MOHRE case reference number	If applicable	If this is a follow-up complaint

5. Intake Agent — Missing Information Prompts

When the Intake Agent identifies missing_info, use these exact questions to request the data from the user in plain language:

Missing Field	Plain-Language Question to Ask User
location (emirate)	Which emirate are you currently working in? (e.g., Dubai, Abu Dhabi, Sharjah, etc.)
employment_type	Are you a full-time, part-time, or temporary worker? And is your employer registered on the mainland UAE?
duration_of_issue	How long has this problem been going on? For example, since which month did your employer stop paying you?
amount_owed	How much money do you believe you are owed in total? (Approximate is fine — we can calculate later)
contract_available	Do you have a copy of your employment contract? Even a photo on your phone is fine.
nationality	What is your nationality? (This helps us find the right embassy contact in case you need it)
employer_establishment_number	Do you know your employer's Establishment Number? It is usually on your labour card or contract. If not, we can look it up for you.
risk_indicators (if unclear)	Has your employer threatened you, held your passport, or made you feel unsafe in any way? Please share details.

This document is a reference guide for an AI legal-aid system. It is not legal advice. Evidence requirements and complaint procedures are based on MOHRE guidelines current as of June 2026 and should be verified at mohre.gov.ae before production use.